

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979 read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

**Court of Appeal Case No.
CA/HCC/0225/2025
High Court of Matale
Case No. HC/101/2020**

Noordeen Mohomed Hanifa Janabdeen
alias Ukkuraja

ACCUSED-APPELLANT

Vs

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.
R. P. Hettiarachchi, J.**

COUNSEL : **Mohan Weerakoon, PC with Sandamali
Peiris for the Appellant.
Wasantha Perera, DSG for the Respondent.**

ARGUED ON : **29/05/2026**

DECIDED ON : **13/07/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Appellant was indicted by the Attorney General for committing an offence under Section 354 and 365B (b) (2) (b) of the Penal Code that is, Kidnapping from lawful guardianship and Grave Sexual Abuse respectively, on Mohamed Najeer Sakeer on 02.03.2017.

The trial commenced on 17/11/2021. After leading all the necessary witnesses, the prosecution had closed the case. The Learned High Court Judge had called for the defence and the Appellant gave evidence from the witness box, called two witnesses on his behalf and closed the case for the defence.

The Learned High Court Judge after considering the evidence presented by both parties, convicted the Appellant as charged and sentenced him on 02.06.2025 as follows:

For the 1st count under section 354 of the Penal Code the Appellant was sentenced to 2 years rigorous imprisonment with a fine of Rs.5000/-. In default, 6 months simple imprisonment was ordered.

For the 2nd count under Section 365B (b)(2)(b), the Appellant was sentenced to 10 years rigorous imprisonment and a fine of Rs.10,000/- was imposed subject to a default sentence of 06 months simple imprisonment. A compensation of 500,000/- was ordered subject to a default sentence of 1-year simple imprisonment.

Being aggrieved by the aforesaid convictions and sentences, the Appellant preferred this appeal to this court.

The Learned President's Counsel for the Appellant informed this court that the Appellant has given consent to argue this matter in his absence. During the argument he has been connected via the Zoom platform from prison.

On behalf of the Appellant the following Grounds of Appeal are raised:

1. The evidence led at the trial was not properly analysed by the Learned High Court Judge.
2. The identity of the Appellant was not proved by the prosecution.
3. There are inter se contradictions between the evidence given by PW1 and PW2.

The Facts of this case *albeit* briefly are as follows.

The victim was 10 years old and was schooling at the time of the incident. The Appellant is the father of one of his friends. The victim gave evidence when he was 15 years. According to him he was living with his parents and three other siblings at the time of the incident.

On the day of the incident, the victim after attending Maths tuition, left for religious observation to the village mosque. Two of his friends had also joined him. One of the friends was the Appellants son. After religious observation, his friends including the Appellant's son had gone home. While the victim was heading towards his home, the Appellant had come on a motor bike and requested the victim to come to catch rabbits. After much persuasion, the victim had gotten on to the bike and the Appellant had proceeded to a maize crop which is situated just behind a Church at Luckywatta. There, the Appellant had asked from the victim whether he knew how to indulge in sex. When he replied in the negative, the Appellant had made the victim sleep on the surface with his face upward after making the victim remove his pair of shorts. Thereafter, the Appellant had climbed onto the victim's body, and had kept his penis among the victim's thighs and had performed intercrural sex on the victim. Although the Appellant had pleaded with the victim to stay back for some time after the sexual act, the victim had left the place and gone home quickly. When his father and mother both asked about the reason for the delay, the victim had divulged the incident to his mother and they had lodged the complaint with the police immediately. As the Appellant's son had heckled him by asking the victim whether he had enjoyed with his father, and since the others at school had bullied the victim, the victim had gotten upset and embarrassed and had stopped schooling for some time.

According to PW2, Noon Shakila, the mother of the victim, on the day of the incident when the victim came home late after attending religious observations, when she inquired from the victim about the reason for the delay, the victim had divulged the incident he had encountered with the Appellant.

PW5, Dr. Waidyaratna who examined the victim had stated that the possibility of intercrural sex cannot be excluded. As per the Medico-Legal Report, PW5 has noted that the findings are not inconsistent with the given history.

In the first ground of appeal, the learned President's Counsel had contended that the evidence led at the trial was not properly analysed by the Learned High Court Judge.

Upon perusal of the judgment, the learned High Court Judge had very correctly analysed all the evidence adduced by both parties in this case. The Learned High Court Judge had mentioned the relevant reasons to substantiate his decision. He had given plausible reasons as to why he believed and acted on the evidence presented by the prosecution. Therefore, this ground has no merit at all.

In the second ground of appeal, the learned President's Counsel strenuously argued that the identity of the Appellant was not established in this case by the prosecution.

In a criminal trial, whether or not the accused is in fact the person who committed the crime can be established by way of identification. The prosecution is responsible for proving the identity of the accused beyond a reasonable doubt, therefore, it is quite evident that accurate identification would be crucial in securing a conviction as well as to prevent wrongful convictions. As such, reliable and accurate identification would ensure the wrong person is not wrongfully convicted when the actual perpetrator of the crime is free. Witnesses would identify the perpetrator by recognising the perpetrator's face, voice or actions from the time of the incident. Thus, the rules and flaws relating to witness identification is essential in protecting the rights of the accused and to maintain trust in the criminal justice system.

The **Turnbull** ruling (from the UK Court of Appeal) 1977 QB 224 ensures the fairness of a trial by protecting the defendant from inherently weak evidence. The case centred on the recognition that an honest witness can still be completely wrong about who they saw. Therefore, the court established that a conviction based wholly or substantially on disputed visual identification requires special judicial scrutiny and procedural safeguards.

The contention of the learned President's Counsel is that the victim had identified the Appellant as "Ukkuraja" solely on the instruction and information provided by his parents, and admitted that prior to the alleged incident he had no knowledge of or acquaintance with any person by that name. It is clearly revealed through the testimony of PW1 himself that he did not know the Accused personally, and that the said name was merely one communicated to him by his mother and father.

The victim in his evidence at page 56 of the brief very clearly stated that he knew the Appellant as the Appellant's son was his friend. Before the incident, the Appellant's son also went to the mosque with the victim but had left early. The Appellant and the victim were residents of the same village. The victim in his cross examination stated that although he did not know the name of the Appellant, he did know him as the father of his friend. He admitted that he came to know the name of the Appellant from his parents. The relevant portion is re-produced below:

Page 69 of the brief.

ප්‍ර : එතකොට පොලිසියට ගිහිල්ලා තමා මේ කිව්වේ අම්මා කිව්වා උක්කුරාජා මාමා තමා මේක කලේ කියලා කියන්න කියලා?

උ : නැහැ නැහැ එහෙම නෙවේ. මට නම දන්නේ නෑ. මෙයා මම දන්නවා.

ප්‍ර : මෙයාව දන්නවා ඔය සිද්ධිය වන විට මෙම තැනැත්තාගේ නම දන්නේ නැහැ?

උ : නැහැ

PW2, in her evidence at page 97-98 conformed that the victim did not know the name of the Appellant at the time of the incident.

Pages 97-98 of the brief.

ප්‍ර : අහන දේට උත්තරදෙන්න පුතා කරදරය වුනේ විත්තිකරුගෙන් කිව්වේ විත්තිකරුගේ නම කියලද කිව්වේ නැතිවද කිව්වේ කොහොමද තමාට කිව්වේ?

උ : පුතා මෙයාගෙ පුතාගෙ නම කියලා එයාගේ තාත්තා. පුතා තමයි එයා අදුරන්නේ තාත්තාගෙ නම එයා අදුරන්නේ නැහැ.

පු : තාත්තාගෙ නම දැනගෙන හිටියේ නැහැ?

උ : නැහැ

Further, the Learned High Court Judge had very correctly dealt with the identification issue in his judgment. The relevant portion is re-produced below:

Pages 212-213 of the brief.

සියලු තත්වයන්ට අවධානය යොමු කිරීමේදී වූදින නිසි පරිදි හඳුනාගැනීමට තරම් කාලවකවානුවක් හා ආලෝක තත්වයක් තිබී ඇති බවටද, ඉහත් යන අයගේ පියා වූදින බවට ඒ වන විටත් හඳුනාගෙන තිබී ඇති බවටද, පෙනී යන තත්වය තුළ මෙම නඩුවේ පැ.සා.1 විසින් වූදින නිසිපරිදි හඳුනාගැනීමකට ලක් කර ඇති බවට තහවුරු වේ. ඒ හේතුවෙන්ම වූදින නිසිපරිදි හඳුනාගෙන නොමැති බවට විත්තිය විසින් ඉදිරිපත් තකර්ය ප්‍රතික්ෂේප කරමි.

This ground of appeal, therefore, has no merit as the identification of the Appellant is very well established by the prosecution.

In the final ground of appeal, the Learned President's Counsel contended that there are inter se contradictions between the evidence given by PW1 and PW2.

Inter se contradictions refer to conflicts or inconsistencies between the testimonies of different prosecution or defense witnesses, which can weaken or even destroy a case. The corresponding legal effect of such contradictions would completely depend how material they are to the core of the case. Therefore, if the testimonies of key witnesses would fundamentally contradict each other on the corpus delicti (the core facts of the crime) which would include, for instance, the sequence of events, identification of the accused, recovery of evidence; the court must treat such fundamentally contradicting versions as unreliable.

The rationale for this is that such major contradictions would create a reasonable doubt in the prosecution's case. It has been established in a number of legal precedents that the benefit of the doubt must be considered in favour of the accused, which would then often result in an acquittal.

The Attorney General v. Sandanam Pitchai Mary Theresa [2011] 2 SLR 292 the court held that:

“Whilst internal contradictions or discrepancies would ordinarily affect the trustworthiness of the witness statement, it is well established that the Court must exercise its judgment on the nature of the inconsistency or contradiction and whether they are material to the facts in issue”.

In the case of **Gangadhar Behera v. State of Orissa:** (2002) 8 SCC 381 it was noted:

“Normal discrepancies in evidence are those which are due to normal errors of observation, normal errors of memory due to lapse of time, due to mental disposition such as shock and horror at the time of occurrence and those are always there however honest and truthful a witness may be. Material discrepancies are those which are not normal, and not expected of a normal person. Courts have to label the category to which a discrepancy may be categorized. While normal discrepancies do not corrode the credibility of a party's case, material discrepancies do so.”

As held in the case of **Mahathun and Others vs. The Attorney General** 2015 [1] SLR 74;

“(4) Where evidence is generally reliable, much importance should not be attached to the minor discrepancies and technical errors.

In the case of **Joy Devaraj vs The State of Kerala** (2024) INSC 473 it was held:

“The appellant was required to demonstrate that the incongruities in the statements of the several eye witnesses shook the roots of their credibility. The threshold for disbelieving a witness is not mere discrepancy or inconsistency but material discrepancy and inconsistency, which renders the account narrated by the witnesses so highly improbable that the same may safely be discarded altogether from consideration.”

In this case, although the learned President’s Counsel highlighted the contradiction and the omission in the evidence given by PW1, the Learned High Court Judge in his judgment at pages 206-208 very correctly had dealt with the contradiction and the omission highlighted and had given plausible reasons as to why he disregards the said contradiction and omission and accepts the evidence given by PW1 and PW2 as cogent.

Considering the evidence led in this case and guided by the judgements mentioned above, I conclude that this is not an appropriate case in which to interfere with the judgement delivered by the Learned High Court Judge on 02/06/2025 against the Appellant. I therefore, dismiss the appeal.

As the Appellant in remand since the date of Judgement, I order his sentence be operative from the date of conviction, i.e., from 02.06.2025.

The Registrar of this Court is directed to send this judgement to the High Court of Matale along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL